

COMBRINCK v. CLERICO

23CV46872

MOTION TO COMPEL INITIAL RESPONSES [to second sets of discovery] and MOTION TO COMPEL FURTHER RESPONSES [to second sets of discovery] and FOR SANCTIONS

Plaintiff's suit seeks a partition by sale of the real properties located at: 1) 41 Purdy Road, Angels Camp; 2) 938 Purdy Road, Angels Camp; and 3) "Dead Horse Mine" (Calaveras County Assessor Parcel Number 062-002-094-000), and Declaratory Relief. The matters before the court are two separate discovery motions brought by plaintiff.

On October 11, 2023, plaintiff served second set of form interrogatories, second set of special interrogatories, second set of requests for admission, and second set of document production requests to defendant who has not responded to these discovery requests, requested an extension of time to respond, or contacted plaintiff's counsel (**Initial Motion**).

The 330-page **Second Motion** seeks to compel further responses to the supplemental responses to first sets of discovery (form and special Interrogatories, requests for admission, and document production). Defendant responded to the first sets of discovery, asserting numerous objections. After exchanges as to the sufficiency of responses between counsel, defendant provided supplemental responses, which plaintiff claims are still defective as they contain the same objections. Sanctions are also requested as part of both motions.

Courts construe the discovery statutes broadly. (*Flagship Theatres of Palm Des., LLC v. Century Theatres, Inc.* (2011) 198 Cal.App.4th 1366, 1383.) "All doubts about discovery are resolved in favor of disclosure." (*Glenfed Dev. Corp. v. Superior Court (National Union Fire Ins. Co. of Pittsburgh, Penn.)* (1997) 53 Cal.App.4th 1113, 1119.)

A party objecting to discovery bears the burden of justifying its objections. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255; *Kirkland v. Superior Court (Guess?)* (2002) 95 Cal.App.4th 92, 98.) Similarly, the burden is on the defendant to demonstrate that disclosure is inappropriate. (*Babcock v. Superior Court (DiGiovanni)* (1994) 29 Cal.App.4th 721, 727-728.) Here, the defendant is silent.

Initial Motion

Plaintiff's second sets of discovery were electronically served on October 11, 2023; responses were all electronically served on November 15, 2023, i.e., the last day for a

response. (In what strikes the Court as inappropriate gamesmanship, the motion to compel was filed that very same day, reflecting preparation in advance of receipt of responses.)

Initial Motion to Compel Responses is DENIED as moot.

Second Motion

- **Form Interrogatories** Plaintiff's focus on the propriety of objections is misguided; reservation of admissibility objections is an issue to be decided at the time of trial and their assertion does not obviate the proper responses that follow the objections.
- **Special Interrogatories** Again, the responses to special interrogatories contain a combination of objections and responses, and insofar as the defendant provided responses after interposing objections and then prefacing the response with the statement "Without waiving said objections", the Court denies plaintiff's motion as the responses are complete and appropriate.
- **Requests for Admission** Once again, multiple objections are asserted combined with a response that is made "Without waiving said objections."
- **Requests for Production** Once again, multiple objections are asserted combined with a response that is made "Without waiving said objections."

The Court also notes plaintiff filed both motions incorporating different methods of discovery in single motions. Each type of discovery is controlled by a different statute and requires separate motions to compel; plaintiff tacitly recognized this by filing separate Separate Statements as to each discovery method.

The **Initial Motion** to Compel is DENIED as moot. The **Second Motion** is DENIED as defendant has provided sufficient responses and the crux of the argument is as to the breadth and propriety of objections, an issue that is not ripe for decision until trial admissibility issues arise. The requests for sanctions are DENIED. [The Court cautions plaintiff to take the totality of this ruling to heart before filing any future discovery motions.]

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

MATTER OF SILVEIRA

21PR8357

MOTION TO COMPEL ANSWERS TO DEPOSITION QUESTIONS AND TO AMEND PRIVILEGE LOG; MOTION FOR SANCTIONS FOR FAILURE TO CONDUCT DEPOSITION

I. MOTION TO COMPEL ANSWERS TO DEPOSITION QUESTIONS AND TO AMEND PRIVILEGE LOG

This matter includes four consolidated probate petitions and one related civil complaint. On September 8, 2023, petitioner Audrey Petrecevich took the deposition of attorney Steven Cottrell (previous counsel for decedent Carolyn Silveira in a dissolution action). During the deposition, the deponent made it clear that he would not answer any questions regarding the purpose of his meetings and communications with Carolyn or Francille Peters (Carolyn's daughter whom Mr. Cottrell says was authorized to speak for Carolyn) unless a court ordered him to do so.

The Separate Statement filed in conjunction with this motion, sets out five questions where Mr. Cottrell was instructed not to answer the question:

- 1. Did she tell you why she wanted a divorce?**
- 2. So there was a meeting with Carolyn Silveira and Francille Peters that you testified about where all three were present. What was the purpose of that meeting.**
- 3. And was Carolyn Silveira able to provide you that information [to identify the marital assets]?**
- 4. What about those discussions do you remember [concerning the availability of \$500,000 to settle the claim]?**
- 5. This was a big deal, wasn't it? Okay. You had discussions. Okay. You remember those discussions. Okay. Let me ask you what you remember about those discussions [again concerning the source of the \$500,000 to settle the claims].**

The Evidence Code provides three express exceptions to the attorney-client privilege when, as here, the client has passed away:

Evidence Code section 957: There is no privilege under this article as to a communication relevant to an issue between parties all of whom claim through a deceased client, regardless of whether the claims are by testate or intestate succession, nonprobate transfer, or inter vivos transaction.